

continual harassment and discrimination, as reflected in the SAC. (City's Exh. 14-2.) The first page of Exhibit 14 is completely redacted. (City's Exh. 14-1.) Plaintiff contends that she has never received an unredacted version of Exhibit 14. However, Rules 2.550 and 2.551 "apply to discovery materials that are used at trial or submitted as a basis for adjudication of matters other than discovery motions or proceedings." (C.R.C., Rule 2.550(a)(3).) Because City does not rely on the redacted portion of the email in support of its MSJ, it is not required to seal it.

Further, City contends that the redacted portion of the email consists of communications between Plaintiff's counsel and City's counsel, and that Plaintiff's counsel possesses the entire email exchange because he was a sender, recipient, or participant in the redacted portion. (Oldendorph Decl., ¶ 11.) Despite acknowledging that she does not know what has been redacted, Plaintiff insists that she has not received an unredacted copy of the document, and contends that Defendant's assertion that Plaintiff should have received it establishes that it is relevant and material, and that there is absolutely no justification for the redaction. (Reply, p. 2.) Plaintiff's conclusion is speculative at best, as it is completely unsupported by any factual or legal authority.

Given the above, the Court denies the motion to unredact Exhibit 14.

The motion is denied in full.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2506622	PICAZO VS CITY OF CORONA	MOTION FOR LEAVE TO AMEND CROSS COMPLAINT

Tentative Ruling:

Moving party: Defendant City of Corona

Responding party: Plaintiffs Gilberto Picazo and Lizbet Alvarez

This action arises out of a motor vehicle accident. On November 24, 2025, Plaintiffs Gilberto Picazo ("Picazo") and Lizbet Alvarez ("Alvarez") (together "Plaintiffs") filed a Complaint against Defendants City of Corona ("City") and Maria Jose Herrera ("Herrera") (together "Defendants") for motor vehicle negligence. In the Complaint, Plaintiffs allege that on October 27, 2024, Herrera, while in the course and scope of her employment with City, was driving a police vehicle owned by City without its lights and sirens, and negligently failed to yield at a clearly posted stop sign and then struck the vehicle driven by Picazo in which Alvarez was a passenger, causing injuries to Plaintiffs. (GN-1.)

City was served with the Summons and Complaint on March 25, 2026, and on April 23, 2026, Defendants filed an Answer to the Complaint.

City now moves for leave to amend to file a Cross-Complaint against Picazo arising out of the vehicle accident that is the subject of the Complaint.

In opposition, Plaintiffs argue that City fails to explain why it delayed in filing the Cross-Complaint; City's claim is contradicted by the evidence and therefore brought in bad faith; the claim is permissive, not compulsory; and Plaintiffs will be prejudiced because they will have to defend against a property damage claim brought by a governmental entity.

In reply, City argues that it is not required to prove the merits of its claim to be granted leave to assert it, and even if evidence was required at this point, after City filed its Answer, Picazo responded in discovery that he was traveling 35-40 mph at the time of impact, which is the basis of City's claim.

Analysis

City seeks leave to file a Cross-Complaint to assert a claim for property damage arising out of the accident that is the subject of the Complaint. (See, Proposed Cross-Complaint, attached as Ex. A to Proposed Order.)

There are two types of cross-complaints – compulsory and permissive. A compulsory cross-complaint is one that must be filed in response to the plaintiff's complaint, or the claims will be barred. (C.C.P. § 426.30(a).) It is a claim against the plaintiff that is related to the plaintiff's complaint. (*Id.*) A "[r]elated cause of action" means a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint." (C.C.P. § 426.10(c).) Permissive cross-complaints are claims that can be brought in a separate lawsuit. (C.C.P. § 428.10(a); *Paredes v. Credit Consulting Services, Inc.* (2022) 82 Cal.App.5th 410, 428, fn. 9.)

Under C.C.P. § 426.50, a party who fails to file a compulsory cross-complaint "whether through oversight, inadvertence, mistake neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action." A motion to file a compulsory cross-complaint should be granted "unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other causes, are insufficient grounds to deny the motion unless accompanied by bad faith." (*Silver Orgs. v. Frank* (1990) 217 Cal.App.3d 94, 99.) Substantial evidence of bad faith must be presented to justify denying a motion for leave to file a compulsory cross-complaint. (*Ibid.*) Bad faith involves actual or constructive fraud, or an intent to mislead another, or a refusal to fulfill some duty or contractual obligation that is not prompted by a mistake, but by a sinister motive. (*Id.* at 100.)

Additionally, leave of court may be granted to file a permissive cross-complaint at any time during the course of the action, if granting said request is "in the interest of justice." (C.C.P. § 428.50(c).) "Permission to file a permissive cross-complaint is solely

within the trial court's discretion." (*Crocker Nat. Bank v. Emerald* (1990) 221 Cal.App.3d 852, 864.)

In the present case, the claim asserted in the Proposed Cross-Complaint is compulsory, as it is directly related to the claims alleged in the Complaint. (See, Proposed Cross-Complaint, attached as Ex. A to Proposed Order.) There is no evidence City acted in bad faith in delaying in filing its Cross-Complaint/this motion, or that Plaintiff will be prejudiced in any way, especially since the motion was filed less than three months after City filed its Answer, only minimal discovery has been conducted, and the Court has not even held a Case Management Conference (set for 11/19/26). Plaintiffs' argument that they will be required to defend against a property damage claim does not establish prejudice from the short delay in filing the Cross-Complaint.

Additionally, to the extent that Plaintiffs contend that City's claims may lack merit, the court typically does not consider the merits of the proposed amended pleading in deciding whether to grant leave to amend. "[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceeding." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Accordingly, the motion is granted, with City ordered to file the Cross-Complaint within 10 days.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2506826	250 KLUG, LLC VS CLARIDGE PRODUCTS & EQUIPMENT, LLC	VERIFIED UNOPPOSED APPLICATION FOR AN ORDER TO APPEAR AS COUNSEL PRO HAC VICE (X3)

Tentative Ruling:

California Business and Professions Code §6125 provides that only active members of the California State Bar shall practice law in this state. California Rule of Court 9.40 allows state courts to give permission for out-of-state attorneys who are not licensed in California to appear on behalf of a party in a particular case as counsel *pro hac vice*. The court can only permit appearances that are made in association with an active California State Bar member who acts as the attorney of record for the party.

CRC 9.40 requires that an application to appear *pro hac vice* be made in writing and be verified. The application must state the applicant attorney's office and residence addresses; the courts to which the attorney has been admitted to practice and the dates of admission; that the attorney is a member in good standing in those courts; that the attorney is not currently suspended or disbarred in any court; the title of the court and cause in which the attorney has filed an application to appear *pro hac vice* in California within the preceding two years, the date of each application, and whether or not it was